

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zim Sessoms	Team: Squad #16	CCRB Case #: 202205844	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 08/29/2022 5:30 PM	Location of Incident: Bushwick Avenue and Myrtle Avenue	18 Mo. SOL 2/29/2024	Precinct: 83		
Date/Time CV Reported Thu, 09/01/2022 10:25 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 09/01/2022 10:25 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Haris Ahmemulic	04604	967409	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Omar Saad	09102	958034	PSA 3
2. SGT Asghar Mahmood	03642	942101	PSA 3
3. PO Mohammad Rizwan	15885	953321	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A . PO Haris Ahmemulic	Abuse: Police Officer Haris Ahmemulic threatened § 87(2)(b) with the use of force.	A . Exonerated
B . PO Haris Ahmemulic	Abuse: Police Officer Haris Ahmemulic threatened to arrest § 87(2)(b)	B . Substantiated
C . PO Haris Ahmemulic	Discourtesy: Police Officer Haris Ahmemulic spoke discourteously to § 87(2)(b)	C . Substantiated

Case Summary

On September 1, 2022, § 87(2)(b) filed this complaint with the CCRB via the on-line website (BR 1).

At approximately 5:30 p.m. on August 29, 2022, § 87(2)(b) was driving on Bushwick Avenue in Brooklyn in her 2021 Nissan Rogue (NY License Plate # § 87(2)(b)) when she was pulled over (BR 19) by Police Officers Haris Ahmemulic and Omar Saad of PSA 3 near the intersection of Bushwick Avenue and Myrtle Avenue. Police Officer Saad approached the driver's side of § 87(2)(b) vehicle and told her that her license plate was obstructed. Police Officer Ahmemulic then approached the driver's side of § 87(2)(b) vehicle and informed her that if she did not exit the vehicle, he would pull her out of it (**Allegation (A) Abuse of Authority: Threat of Force, exonerated**). Police Officer Ahmemulic further stated that if § 87(2)(b) did not comply with the officers' orders, she would place her under arrest for obstruction (**Allegation (B) Abuse of Authority: Threat of Arrest, substantiated**). § 87(2)(b) exited the vehicle of her own power and began to argue with Police Officer Ahmemulic. During the argument, Police Officer Ahmemulic told § 87(2)(b) "You're so ignorant" (**Allegation (C) Discourtesy: Word, substantiated**). Sergeant Asghar Mahmood and Police Officer Mohammad Rizwan of PSA 3 arrived at the scene shortly thereafter. After speaking to Sergeant Mahmood, Police Officer Ahmemulic placed § 87(2)(b) under arrest and took her to the 83rd Precinct stationhouse. § 87(2)(b) was eventually released with a summons for an obstructed license plate (BR 03).

Body-worn camera (BWC) footage was obtained from the body-worn cameras of Sergeant Mahmood and Police Officers Saad, Ahmemulic, and Rizwan (BR 5,6,7, 15). The investigation is not in possession of additional video.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Haris Ahmemulic threatened § 87(2)(b) with the use of force.

Allegation (B) Abuse of Authority: Police Officer Haris Ahmemulic threatened to arrest § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on September 19, 2022 (BR 4). Police Officer Ahmemulic was interviewed by the CCRB on November 2, 2022 (BR 9)

It is undisputed that, at the time the officers pulled her vehicle over, § 87(2)(b) vehicle appeared to have a piece of paper taped to its rear license plate, physically covering at least one digit of its license plate number.

§ 87(2)(b) (BR 4) stated when she was pulled over by Police Officers Ahmemulic and Saad, Police Officer Saad approached the driver's side of her vehicle while Police Officer Ahmemulic approached the passenger's side. While speaking to Police Officer Saad, Police Officer Ahmemulic knocked aggressively on the passenger's side door and yelled at § 87(2)(b) to lower the window. Police Officer Ahmemulic then went to the driver's side of § 87(2)(b) vehicle and opened the door, telling § 87(2)(b) that if she did not get out of the vehicle, he would pull her out. When § 87(2)(b) did not comply, Police Officer Ahmemulic grabbed § 87(2)(b) left arm, unbuckled her seatbelt, and told her if she did not get out of the vehicle he would pull her out. After a back and forth with Police Officer Ahmemulic, § 87(2)(b) decided to exit the vehicle.

Police Officer Ahmemulic (BR 9) stated he and Police Officer Saad pulled over § 87(2)(b) after noticing a white piece of paper on § 87(2)(b) license plate obstructing one of the numbers.

Police Officer Saad walked to the front driver's side door of § 87(2)(b) vehicle while Police Officer Ahmemulic walked to the front passenger side door. Police Officer Ahmemulic attempted to look inside the vehicle but was unable to as the tints were too dark. Police Officer Ahmemulic overheard § 87(2)(b) refusing to comply with Police Officer Saad's order to roll down her window. Police Officer Ahmemulic then went over to the passenger side of the vehicle and asked § 87(2)(b) to step out of the vehicle. She refused to comply. Police Officer Ahmemulic, in response, opened the driver's side door of § 87(2)(b) vehicle and once again asked her to step out of the vehicle. § 87(2)(b) continued to refuse and Police Officer Ahmemulic told her that she could be arrested for obstruction of governmental administration for failing to comply with his lawful orders. Police Officer Ahmemulic told § 87(2)(b) if she did not get out of the vehicle he would take her out of the vehicle.

Police Officer Ahmemulic's BWC footage (BR 7) shows him asking § 87(2)(b) to exit her vehicle several times (at 37 seconds, 47 seconds, 59 seconds, 1 minute and 4 seconds, 1 minute and 19 seconds, 1 minute and 32 seconds, 1 minute and 47 seconds, 1 minute and 48 seconds, and 1 minute and 50 seconds). She does not comply with any of these instructions. At time stamp 56 seconds, Police Officer Ahmemulic tells § 87(2)(b) "Ma'am if you don't comply with our orders, you will be placed under arrest for obstruction." § 87(2)(b) asks what she is obstructing, to which Police Officer Ahmemulic informs her she is obstructing governmental administration. At 1 minute and 52 seconds, he tells § 87(2)(b) "If I have to pull you out, you're going to be under arrest." At 2 minutes and 0 seconds, § 87(2)(b) exits the vehicle of her own power after Police Officer Ahmemulic lets go of her wrist.

New York Penal Law 195.05 (BR 21) considers an individual obstructing governmental administration when that person intentionally (through conscious objective or purpose) obstructs, impairs, or perverts the administration of a governmental function by means of : intimidation, physical force or interference, or by means of any independently unlawful act.

New York Vehicle and Traffic Law 402 (1)(B)(II) (BR 17) states that numbered plates shall not be knowingly covered or coated with any artificial or synthetic material that conceals or obscures such number plates. Punishment for violating this law is a fine of not less than fifty nor more than three hundred dollars.

In People v Forbes, 283 A.D.2d 92 (2001), (BR 16) the court stated that traffic stops are potentially dangerous and the risk of harm to both police and the occupants is minimized if the officers routinely exercise unquestioned command of the situation. Legitimate safety concerns of the officers conducting a traffic stop outweigh the minor intrusion to the passenger's liberty in requesting them to exit the vehicle.

In People v Offen, 96 Misc. 2d 147 (1978) (BR 22), the court determined refusal to open a door for an officer does not constitute a crime, as such an action does not interrupt or shut down administrative governmental operations. Officers have lawful power to bypass any barrier or obstacle through maneuvers such as use of force or the obtainment of a warrant.

§ 87(2)(g)

It is therefore recommended that **allegation A** be exonerated.

§ 87(2)(g)

At no point did § 87(2)(b) use any form of intimidation or physical force, nor did she engage in any active interference that impaired the ability of Police Officer Ahmemulic to perform his duties. § 87(2)(g)

Therefore, it is recommended that Allegation B be **Substantiated**.

Allegation (C) Discourtesy: Police Officer Haris Ahmemulic spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 4) stated when she walked over to the front passenger side door of her vehicle, she and Police Officer Ahmemulic got into an argument about police brutality. After § 87(2)(b) gave her opinions, Police Officer Ahmemulic responded that she was “so ignorant” for her opinions.

Police Officer Ahmemulic’s BWC footage (BR 7) shows, at 5 minutes and 51 seconds, § 87(2)(b) telling Police Officer Ahmemulic, “You know what I know? Police officers kill black people every day.” Police Officer Ahmemulic responds, “Oh yeah? When was the last time we killed a black guy?” § 87(2)(b) responds, “I don’t know what you did, I never ran your name.” Police Officer Ahmemulic then responds, “Not me but anybody else? When has an NYPD officer last killed a black man?” § 87(2)(b) tells Police Officer Ahmemulic, “They do it every day, they’re not on the news every day.” Police Officer Ahmemulic then tells § 87(2)(b) at 6 minutes and 5 seconds, “Oh my God you’re so ignorant right now, give me your license. Because this is unnecessary stuff that you’re doing, you’re so ignorant.”

Police Officer Ahmemulic (BR 9) stated he and § 87(2)(b) were engaged in a dispute about police brutality and was told by § 87(2)(b) that she did not feel safe around officers as officers kill black people every day. Police Officer Ahmemulic told § 87(2)(b) “You’re so ignorant” in response to § 87(2)(b) statements about police officers killing black men “every day” because the statement § 87(2)(b) made sounded “ridiculous” to him and was a “bigoted statement” in the context of their interactions.

NYPD Patrol Guide Procedure 200-02 (BR 12) states that one of the values of the NYPD is to value human life, respect the dignity of each individual and render services with courtesy and civility.

While officers are generally prohibited from using profanities toward civilians, they may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian. PD v. Pichardo, DAO DCT Case Number 2015-15012 (BR 20).

§ 87(2)(g)

It is therefore recommended that **allegation B** be **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Police Officer Ahmemulic has been a member of service for three years and has been a subject in nine other CCRB complaints and 47 allegations, of which two were substantiated in one case:
 - Case number 202100459 involved substantiated allegations of Threat of Force and Discourtesy-Word against Police Officer Ahmemulic. The Board recommended Charges and the NYPD has not yet imposed discipline.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of December 5, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 18)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 2

Investigator:	Zim Sessoms Signature	Inv. Zim Sessoms Print Title & Name	11/02/2023 Date
Squad Leader:	Alexander Opoku-Agyemang Signature	IM Opoku-Agyemang Print Title & Name	1/19/2023 Date
Reviewer:	Patrick Yu Signature	IM Patrick Yu Print Title & Name	11/02/2023 Date